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ACCURATE BACKGROUND, LLC

UNITED STATES DISTRICT COURT

CENTRAL DISTRICT OF CALIFORNIA

SOUTHERN DIVISION – SANTA ANA

JOHNNY DENZEL SANTEE,

Plaintiff,

v.

ACCURATE BACKGROUND, INC.,

Defendant.

Case No. 8:25-cv-02447-FWS-JDE

Honorable Fred W. Slaughter

DEFENDANT ACCURATE BACKGROUND, LLC'S ANSWER AND AFFIRMATIVE AND OTHER DEFENSES TO PLAINTIFF'S COMPLAINT

Defendant ACCURATE BACKGROUND, LLC (incorrectly named "Accurate Background, Inc."), by its attorneys and pursuant to Rules 8 and 12 of the Federal Rules of Civil Procedure, answers Plaintiff's Complaint and asserts its affirmative and other defenses as follows:

PRELIMINARY STATEMENT

COMPLAINT ¶1:

Plaintiff brings this action under 15 U.S.C. § 1681 *et seq*. the Fair Credit Reporting Act ("FCRA"), and Cal. Civ. Code § 1785 *et seq*. the Consumer Credit Reporting Agencies Act ("CCRAA") for actual and statutory damages, punitive damages, costs, and reasonable attorneys' fees against Defendant.

ANSWER:

Accurate admits that Plaintiff purports to bring claims under the Fair Credit Reporting Act, 15 U.S.C. § 1681 *et seq.* ("FCRA") and the Consumer Credit Reporting Agencies Act, Cal. Civ. Code § 1785 *et seq.* ("CCRAA") to recover his alleged damages and obtain other relief. Accurate denies that it violated the FCRA, the CCRAA, or any other law, and further denies that Plaintiff is entitled to any relief whatsoever. Accurate denies the remaining allegations in Paragraph No. 1 of the Complaint.

JURISDICTION AND VENUE

COMPLAINT ¶2:

This Court has jurisdiction over Plaintiff's claims pursuant to 28 U.S.C. § 1331, 1334, and 15 U.S.C. § 1681(p), which allows claims under the FCRA to be brought in any appropriate court of competent jurisdiction.

ANSWER:

Accurate admits this Court has jurisdiction over this action pursuant to 28 U.S.C. § 1331 because it arises out of a question of federal law, in particular, the FCRA. *See* 15 U.S.C. § 1681p. Accurate further admits that this Court has supplemental jurisdiction over Plaintiff's CCRAA claims pursuant to 28 U.S.C. § 1367. Accurate denies the remaining allegations in Paragraph No. 2 of the Complaint.

COMPLAINT ¶3:

Venue is proper in this judicial district pursuant to 28 U.S.C. § 1391b(1), 28 U.S.C. § 1391b(2), and 28 U.S.C. § 1391b(3) being that defendant Accurate Background Inc's maintains its principal place of business in Irvine, California, and the acts and omissions complained of occurred in substantial part within this District.

ANSWER:

Accurate admits that venue is proper in this Court, and further admits that it has a principal place of business in Irvine, California. Accurate denies the remaining allegations in Paragraph No. 3 of the Complaint.

PARTIES AND SERVICE

Plaintiff JOHNNY DENZEL SANTEE

COMPLAINT ¶4:

Plaintiff is a resident of Houston, Texas.

ANSWER:

Accurate lacks knowledge or information sufficient to form a belief as to Plaintiff's current residence.

COMPLAINT ¶5:

At all times material hereto, Plaintiff is a "Consumer," as defined under 15 U.S.C. § 1681a(c) and Cal. Civ. Code § 1785.3(b).

ANSWER:

Accurate admits that Plaintiff is a "consumer" as that term is defined by 15 U.S.C. § 1681a(c) and Cal. Civ. Code § 1785.3(b). Accurate denies any remaining allegations in Paragraph No. 5 of the Complaint.

Defendant Accurate Background, Inc.

COMPLAINT ¶6:

Defendant Accurate Background is a "Consumer Reporting Agency" as defined by 15 U.S.C. § 1681a(f) and Cal. Civ. Code § 1785.3(d) and conducts substantial and regular business activities in this judicial district with its corporate headquarters located in this district. Defendant may be served with process upon DAVID C DICKERSON, its registered agent for service of process, at 7515 IRVINE CTR DR, IRVINE, CA 92618.

ANSWER:

Accurate admits that it performs certain services as a "consumer reporting agency" under the FCRA, and limited to those activities only. Accurate also admits that it has a principal place of business in Irvine, California, and admits that it has been served with process. Accurate denies the remaining allegations in Paragraph No. 6 of the Complaint.

COMPLAINT ¶7:

At all times material hereto, Defendant Accurate Background is a Consumer Reporting Agency regularly engaged in interstate commerce by and through the business of assembling, evaluating, and disbursing information concerning consumers for the purposes of furnishing consumer reports to third parties including employers and property managers—as defined under 15 U.S.C. § 1681d.

ANSWER:

Accurate admits that it provides certain services as a "consumer reporting agency" under the FCRA, and as limited to those activities only. Accurate denies the remaining allegations in Paragraph No. 7 of the Complaint.

FACTUAL ALLEGATIONS

COMPLAINT ¶8:

In September 2025, Plaintiff applied for an employment opportunity with Canadian Pacific Kansas City ("CPKC").

ANSWER:

Accurate admits, upon information and belief, that Plaintiff applied for employment with Canadian Pacific Kansas City ("CPKC") in or around September 2025. Accurate lacks knowledge or information sufficient to form a belief as to the truth of the remaining allegations in Paragraph No. 8 of the Complaint.

COMPLAINT ¶9:

As part of the hiring process, CPKC used Defendant Accurate Background, Inc. to obtain background reports on Plaintiff.

ANSWER:

Accurate admits that CPKC ordered a background report regarding Plaintiff from Accurate. Accurate denies any remaining allegations in Paragraph No. 9 of the Complaint.

COMPLAINT ¶10:

Accurate furnished two inaccurate background reports to CPKC. Each report falsely indicated that Plaintiff's Texas driver's license had a restriction.

ANSWER:

Accurate admits that it prepared background reports regarding Plaintiff at the request of CPKC on September 17, 2025 and September 19, 2025. Accurate states that the referenced reports are the best evidence of their contents and denies any allegations in Paragraph No. 10 of the Complaint that are inconsistent with the referenced reports. Accurate denies the remaining allegations in Paragraph No. 10 of the Complaint.

COMPLAINT ¶11:

Plaintiff's driver's license was, in fact, valid and unrestricted, as confirmed by the Texas Department of Public Safety and shown on Plaintiff's temporary license issued September 17, 2025.

ANSWER:

Accurate denies the allegations in Paragraph No. 11 of the Complaint.

COMPLAINT ¶12:

After the first inaccurate report, Plaintiff promptly disputed the inaccuracy and provided Accurate with a copy of his valid, unrestricted driver's license.

ANSWER:

Accurate admits that Plaintiff contacted Accurate to dispute the accuracy of the information contained in the report Accurate prepared for CPKC on September 17, 2025. Accurate further admits that, on September 22, 2025, Plaintiff provided Accurate with a copy of his temporary driver's license. Accurate denies the remaining allegations in Paragraph No. 12 of the Complaint.

COMPLAINT ¶13:

Despite receiving this documentation, Accurate issued a second inaccurate report again falsely indicating a restriction on Plaintiff's license.

ANSWER:

Accurate denies the allegations in Paragraph No. 13 of the Complaint. Answering further, Accurate states that it prepared a background report regarding Plaintiff at the

request of CPKC on September 19, 2025. Plaintiff did not provide a copy of his temporary driver's license until September 22, 2025. Accurate denies any remaining allegations in Paragraph No. 13 of the Complaint.

COMPLAINT ¶14:

Plaintiff disputed the second inaccurate report as well.

ANSWER:

Accurate denies the allegations in Paragraph No. 14 of the Complaint.

COMPLAINT ¶15:

Accurate eventually completed its reinvestigation and corrected the report to show Plaintiff's license was valid and unrestricted.

ANSWER:

Accurate admits that it prepared an amended report regarding Plaintiff. Accurate denies the remaining allegations in Paragraph No. 15 of the Complaint.

COMPLAINT ¶16:

However, because of Accurate's repeated errors and delay in correcting the reports, Plaintiff's prospective employer delayed his training start date.

ANSWER:

Accurate denies the allegations in Paragraph No. 16 of the Complaint.

COMPLAINT ¶17:

Plaintiff's original start date was October 13, 2025, but his potential employer informed him that because it took so long to clear the license, the next available training class would not begin until 2026.

ANSWER:

Accurate is without information or knowledge sufficient to form a belief as to the truth of Plaintiff's alleged start date. Accurate denies the remaining allegations in Paragraph No. 17 of the Complaint.

COMPLAINT ¶18:

As a direct result, Plaintiff lost wages from the 20-week training period that would have commenced in October 2025.

ANSWER:

Accurate denies the allegations in Paragraph No. 18 of the Complaint.

COMPLAINT ¶19:

Accurate's conduct caused Plaintiff additional harm, including stress, frustration, and emotional distress over the loss of his job opportunity and income.

ANSWER:

Accurate denies the allegations in Paragraph No. 19 of the Complaint.

FIRST CAUSE OF ACTION

15 U.S.C. § 1681e(b) — Negligent Failure to Follow Reasonable Procedures

COMPLAINT ¶20:

Plaintiff incorporates by reference all the above paragraphs of this Complaint as though fully stated herein with the same force and effect as if the same were set forth at length herein.

ANSWER:

Accurate restates its answers to Paragraph Nos. 1 through 19 as its answer to Paragraph No. 20 of the Complaint.

COMPLAINT ¶21:

This is an action for negligent violation of the FCRA; 15 U.S.C. § 1681 *et. seq*.

ANSWER:

Accurate admits that Plaintiff purports to bring a claim for negligent violation of Section 1681e(b) of the FCRA. Accurate denies that it violated any section of the FCRA, or any other law, and denies any remaining allegations in Paragraph No. 21 of the Complaint.

COMPLAINT ¶22:

Section 1681e(b) of the FCRA requires consumer reporting agencies to "follow reasonable procedures to assure maximum possible accuracy" of the information concerning a consumer.

ANSWER:

Accurate admits that the language quoted in Paragraph No. 22 of the Complaint appears in 15 U.S.C. § 1681e(b). Accurate denies the remaining allegations in Paragraph No. 22 of the Complaint.

COMPLAINT ¶23:

Accurate Background, Inc. routinely prepares employment background reports for large national employers such as CPKC. Accurate knew that these reports are relied upon to make immediate employment decisions and that any false indication of a driver's license restriction would automatically disqualify a candidate from transportation-related positions.

ANSWER:

Accurate admits that, in its capacity as a consumer reporting agency, it has, at times, prepared employment-purposed consumer reports for third parties, including CPKC. Accurate denies the remaining allegations in Paragraph No. 23 of the Complaint.

COMPLAINT ¶24:

Despite this, Accurate twice generated and transmitted reports stating that Plaintiff's Texas driver's license carried a restriction, even though Texas DPS records and the license itself clearly showed it to be valid and unrestricted.

ANSWER:

Accurate denies the allegations in Paragraph No. 24 of the Complaint.

COMPLAINT ¶25:

Accurate failed to use reasonable procedures to verify the accuracy of driver's-license information before releasing the reports to CPKC. A simple check of the state's DPS database or review of the uploaded license image would have revealed the truth.

ANSWER:

Accurate denies the allegations in Paragraph No. 25 of the Complaint.

COMPLAINT ¶26:

Accurate further failed to employ any quality-control or cross-check procedure to prevent the same error from reappearing in a second report after Plaintiff had already disputed the first one.

ANSWER:

Accurate denies the allegations in Paragraph No. 26 of the Complaint.

COMPLAINT ¶27:

As a direct and foreseeable result, Plaintiff's conditional employment offer was placed on hold, his October 14, 2025, start date was cancelled, and he lost wages from the delayed training period.

ANSWER:

Accurate denies the allegations in Paragraph No. 27 of the Complaint.

COMPLAINT ¶28:

Plaintiff also suffered emotional distress, frustration, and embarrassment from being wrongly flagged as having a restricted license.

ANSWER:

Accurate denies the allegations in Paragraph No. 28 of the Complaint.

COMPLAINT ¶29:

Defendant's conduct was negligent within the meaning of 15 U.S.C. § 1681o, entitling Plaintiff to actual damages, costs, and attorneys' fees.

ANSWER:

Accurate denies that it violated any section of the FCRA, or any other law, and denies that Plaintiff is entitled to any relief whatsoever. Accurate denies the remaining allegations in Paragraph No. 29 of the Complaint.

SECOND CAUSE OF ACTION

15 U.S.C. § 1681e(b) — Willful Failure to Follow Reasonable Procedures

COMPLAINT ¶30:

Plaintiff incorporates by reference all the above paragraphs of this Complaint as though fully stated herein with the same force and effect as if the same were set forth at length herein.

ANSWER:

Accurate restates its answers to Paragraph Nos. 1 through 29 as its answer to Paragraph No. 30 of the Complaint.

COMPLAINT ¶31:

This is an action for willful violation of the FCRA 15 U.S.C. § 1681 *et. seq.*

ANSWER:

Accurate admits that Plaintiff purports to bring a claim for willful violation of Section 1681e(b) of the FCRA. Accurate denies that it violated any section of the FCRA, or any other law, and denies any remaining allegations in Paragraph No. 31 of the Complaint.

COMPLAINT ¶32:

Accurate's conduct was not a mere oversight. It willfully ignored clear evidence establishing that Plaintiff's license was unrestricted.

ANSWER:

Accurate denies the allegations in Paragraph No. 32 of the Complaint.

COMPLAINT ¶33:

After receiving Plaintiff's dispute and an unambiguous copy of the Texas license showing no restrictions, Accurate intentionally or recklessly reused the same flawed data source and re-issued another inaccurate report with the identical error.

ANSWER:

Accurate denies the allegations in Paragraph No. 33 of the Complaint.

COMPLAINT ¶34:

Accurate's internal policies and automated systems are designed for speed and volume, not accuracy, and it knowingly risks false reporting to employers. Such conduct constitutes a willful disregard of the FCRA's accuracy mandate.

ANSWER:

Accurate denies the allegations in Paragraph No. 34 of the Complaint.

COMPLAINT ¶35:

Defendant's failures were willful and/or reckless because Accurate knew that it was furnishing inaccurate reports and disregarded clear proof—Plaintiff's valid license—demonstrating that no restriction existed.

ANSWER:

Accurate denies the allegations in Paragraph No. 35 of the Complaint.

COMPLAINT ¶36:

Accurate's actions were undertaken in conscious disregard of Plaintiff's rights warranting statutory and punitive damages under 15 U.S.C. § 1681n, in addition to attorneys' fees and costs.

ANSWER:

Accurate denies that it violated any section of the FCRA, or any other law, and denies that Plaintiff is entitled to any relief whatsoever. Accurate denies the remaining allegations in Paragraph No. 36 of the Complaint.

THIRD CAUSE OF ACTION

15 U.S.C. § 1681i(a) — Negligent Failure to Conduct Reasonable Reinvestigation

COMPLAINT ¶37:

Plaintiff incorporates by reference all the above paragraphs of this Complaint as though fully stated herein with the same force and effect as if the same were set forth at length herein.

ANSWER:

Accurate restates its answers to Paragraph Nos. 1 through 36 of the Complaint as its answer to Paragraph No. 37 of the Complaint.

COMPLAINT ¶38:

This is an action for negligent violation of the FCRA 15 U.S.C. § 1681 *et. seq*.

ANSWER:

Accurate admits that Plaintiff purports to bring a claim for negligent violation of Section 1681i(a) of the FCRA. Accurate denies that it violated any section of the FCRA, or any other law, and denies any remaining allegations in Paragraph No. 38 of the Complaint.

COMPLAINT ¶39:

Section 1681i(a) requires a consumer reporting agency, upon receiving a dispute, to conduct a reasonable reinvestigation to determine whether the disputed information is inaccurate and to correct or delete any item found to be incorrect.

ANSWER:

Accurate admits that the FCRA requires consumer reporting agencies to reinvestigate consumer disputes. Accurate denies the remaining allegations in Paragraph No. 39 of the Complaint.

COMPLAINT ¶40:

After Plaintiff disputed the first inaccurate report, Accurate had actual possession of the correct DPS license image showing no restrictions. Yet it failed to verify or correct its data and instead regenerated the same false information in a second report.

ANSWER:

Accurate denies the allegations in Paragraph No. 40 of the Complaint.

COMPLAINT ¶41:

Accurate's reinvestigation procedures were wholly unreasonable: it relied exclusively on automated vendor data without human verification, ignored the documentary proof supplied by Plaintiff, and failed to contact the Texas Department of Public Safety to confirm license status.

ANSWER:

Accurate denies the allegations in Paragraph No. 41 of the Complaint.

COMPLAINT ¶42:

Accurate's failure timely to correct the report caused a weeks-long delay in clearing Plaintiff's background, directly resulting in the lost October 2025 start date and substantial financial harm.

ANSWER:

Accurate denies the allegations in Paragraph No. 42 of the Complaint.

COMPLAINT ¶43:

Defendant's acts and omissions constitute negligent violations of § 1681i(a), entitling Plaintiff to actual damages, attorneys' fees, and costs under § 1681o.

ANSWER:

Accurate denies that it violated any section of the FCRA, or any other law, and denies that Plaintiff is entitled to any relief whatsoever. Accurate denies the remaining allegations in Paragraph No. 43 of the Complaint.

FOURTH CAUSE OF ACTION

15 U.S.C. § 1681i(a) — Willful Failure to Conduct Reasonable Reinvestigation

COMPLAINT ¶44:

Plaintiff incorporates by reference all the above paragraphs of this Complaint as though fully stated herein with the same force and effect as if the same were set forth at length herein.

ANSWER:

Accurate restates its answers to Paragraph Nos. 1 through 43 of the Complaint as its answer to Paragraph No. 44 of the Complaint.

COMPLAINT ¶45:

This is an action for willful violation of the FCRA 15 U.S.C. § 1681 *et. seq.*

ANSWER:

Accurate admits that Plaintiff purports to bring a claim for willful violation of Section 1681i(a) of the FCRA. Accurate denies that it violated any section of the FCRA, or any other law, and denies any remaining allegations in Paragraph No. 45 of the Complaint.

COMPLAINT ¶46:

Accurate's repeated failure to correct the error even after receiving documentary proof was a willful violation of its reinvestigation obligations.

ANSWER:

Accurate denies the allegations in Paragraph No. 46 of the Complaint.

COMPLAINT ¶47:

Accurate deliberately relied on the same flawed data source that produced the first inaccuracy, knowingly issuing a second false report rather than performing an independent verification with the state licensing authority.

ANSWER:

Accurate denies the allegations in Paragraph No. 47 of the Complaint.

COMPLAINT ¶48:

Accurate's business model favors quick turn-around reports to satisfy employer contracts at the expense of consumer accuracy. It consciously chose to disregard obvious red flags and supporting documentation that contradicted its automated data.

ANSWER:

Accurate denies the allegations in Paragraph No. 48 of the Complaint.

COMPLAINT ¶49:

Such conduct demonstrates a reckless disregard of the FCRA and Plaintiff's rights, constituting a willful violation under 15 U.S.C. § 1681n.

ANSWER:

Accurate denies that it violated any section of the FCRA, or any other law. Accurate denies the remaining allegations in Paragraph No. 49 of the Complaint.

COMPLAINT ¶50:

Defendant willfully failed to follow FCRA procedures by ignoring clear proof of the inaccuracy and by issuing a second inaccurate report after the first dispute.

ANSWER:

Accurate denies that it violated any section of the FCRA, or any other law. Accurate denies the remaining allegations in Paragraph No. 50 of the Complaint.

COMPLAINT ¶51:

Under 15 U.S.C. § 1681n, Plaintiff seeks statutory damages, punitive damages, and attorneys' fees and costs.

ANSWER:

Accurate denies that Plaintiff is entitled to any relief whatsoever. Accurate denies the remaining allegations in Paragraph No. 51 of the Complaint.

FIFTH CAUSE OF ACTION
Consumer Credit Reporting Agencies Act
Negligent violation of Cal. Civ. Code § 1785.14

COMPLAINT ¶52:

Plaintiff incorporates by reference all the above paragraphs of this Complaint as though fully stated herein with the same force and effect as if the same were set forth at length herein.

ANSWER:

Accurate restates its answers to Paragraph Nos. 1 through 51 of the Complaint as its answer to Paragraph No. 52 of the Complaint.

COMPLAINT ¶53:

This is an action for negligent violation of the CCRAA Cal. Civ. Code § 1785 *et. seq*.

ANSWER:

Accurate admits that Plaintiff purports to bring a claim for negligent violation of Section 1785.14 of the CCRAA. Accurate denies that it violated any section of the CCRAA, or any other law, and denies any remaining allegations in Paragraph No. 53 of the Complaint.

COMPLAINT ¶54:

Defendant Accurate Background violated Cal. Civ. Code § 1785.14. by failing to establish or follow reasonable procedures to assure maximum possible accuracy in the preparation of the consumer report and credit files maintained concerning Plaintiff.

ANSWER:

Accurate denies that it violated any section of the CCRAA, or any other law. Accurate denies the remaining allegations in Paragraph No. 54 of the Complaint.

COMPLAINT ¶55:

Defendant Accurate negligently failed to comply with the CCRAA. The failures of the Defendant to comply with the CCRAA include but are not necessarily limited to the following:

a. The failure to follow reasonable procedures to assure the maximum possible accuracy of the information reported;

b. The failure to delete information promptly that was found to be misleading or inaccurate, or could not be verified, or that the source of information had advised Defendant to delete;

c. The failure to take adequate steps to verify information Defendant had reason to believe was misleading before including it in the credit report of the consumer.

ANSWER:

Accurate denies that it violated any section of the CCRAA, or any other law. Accurate denies the remaining allegations in Paragraph No. 55 of the Complaint.

COMPLAINT ¶56:

As a result of the conduct, actions, and inaction of Defendant Accurate, Plaintiff suffered damage by loss of wages, additional harm, including stress, frustration, and emotional distress over the loss of his job opportunity and income.

ANSWER:

Accurate denies the allegations in Paragraph No. 56 of the Complaint.

COMPLAINT ¶57:

The conduct, action, and inaction of Defendant Accurate was negligent, entitling Plaintiff to damages under Cal. Civ. Code § 1785.31(a)(1).

ANSWER:

Accurate denies that it violated any section of the CCRAA, or any other law, and denies that Plaintiff is entitled to any relief whatsoever. Accurate denies the remaining allegations in Paragraph No. 57 of the Complaint.

COMPLAINT ¶58:

Plaintiff is entitled to recover reasonable costs and attorney's fees from Defendant in an amount to be determined by the Court pursuant to Cal. Civ. Code § 1785.31(a)(1).

ANSWER:

Accurate denies that Plaintiff is entitled to any relief whatsoever. Accurate denies the remaining allegations in Paragraph No. 58 of the Complaint.

SIXTH CAUSE OF ACTION
Consumer Credit Reporting Agencies Act
Willful violation of Cal. Civ. Code § 1785.14

COMPLAINT ¶59:

Plaintiff incorporates by reference all the above paragraphs of this Complaint as though fully stated herein with the same force and effect as if the same were set forth at length herein.

ANSWER:

Accurate restates its answers to Paragraph Nos. 1 through 58 of the Complaint as its answer to Paragraph No. 59 of the Complaint.

COMPLAINT ¶60:

This is an action for willful violation of the CCRAA Cal. Civ. Code § 1785 *et. seq*.

ANSWER:

Accurate admits that Plaintiff purports to bring a claim for willful violation of Section 1785.14 of the CCRAA. Accurate denies that it violated any section of the CCRAA, or any other law, and denies any remaining allegations in Paragraph No. 60 of the Complaint.

COMPLAINT ¶61:

Defendant violated Cal. Civ. Code § 1785.14 by failing to establish or follow reasonable procedures to assure maximum possible accuracy in the preparation of the consumer report and credit files maintained concerning Plaintiff.

ANSWER:

Accurate denies that it violated any section of the CCRAA, or any other law. Accurate denies the remaining allegations in Paragraph No. 61 of the Complaint.

COMPLAINT ¶62:

Defendant Accurate willfully failed to comply with the CCRAA. The failures of the Defendant to comply with the CCRAA include but are not necessarily limited to the following:

a. The failure to follow reasonable procedures to assure the maximum possible accuracy of the information reported;

b. The failure to delete information promptly that was found to be misleading or inaccurate, or could not be verified, or that the source of information had advised Defendant to delete;

c. The failure to take adequate steps to verify information Defendant had reason to believe was misleading or inaccurate before including it in the credit report of the Plaintiff.

ANSWER:

Accurate denies that it violated any section of the CCRAA, or any other law. Accurate denies the remaining allegations in Paragraph No. 62 of the Complaint.

COMPLAINT ¶63:

The conduct, action, and inaction of Defendant Accurate was willful, entitling Plaintiff to damages under Cal. Civ. Code § 1785.31(a)(2).

ANSWER:

Accurate denies that it violated any section of the CCRAA, or any other law, and denies that Plaintiff is entitled to any relief whatsoever. Accurate denies the remaining allegations in Paragraph No. 63 of the Complaint.

COMPLAINT ¶64:

Plaintiff is entitled to recover reasonable costs and attorney's fees from Defendant Accurate in an amount to be determined by the Court pursuant to Cal. Civ. Code § 1785.31(a)(2).

ANSWER:

Accurate denies that Plaintiff is entitled to any relief whatsoever. Accurate denies the remaining allegations in Paragraph No. 64 of the Complaint.

DEMAND FOR TRIAL BY JURY

Plaintiff requests a trial by jury on all issues and counts so triable, pursuant to Rule 38 of the Federal Rules of Civil Procedure.

ANSWER:

Accurate admits that Plaintiff demands a trial by jury on all issues so triable.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff seeks judgment against Defendant as follows:

1. Awarding Plaintiff actual damages provided and pursuant to 15 U.S.C. § 1681o(a) and Cal. Civ. Code § 1785.31(a) from Defendant;

2. Awarding Plaintiff statutory damages provided and pursuant to 15 U.S.C. § 1681n(a) and Cal. Civ. Code § 1785.31(a) from Defendant;

3. Awarding Plaintiff punitive damages provided and pursuant to 15 U.S.C. § 1681n(a)(2) and Cal. Civ. Code § 1785.31(a)(2)(B) from Defendant;

4. Awarding Plaintiff attorneys' fees provided and pursuant to 15 U.S.C. § 1681n(a)(3), 15 U.S.C.§ 1681o(a)(2), Cal. Civ. Code § 1785.31(a)(1), and Cal. Civ. Code § 1785.31(a)(2); and

5. Awarding Plaintiff such other and further relief as this Court may deem just and proper.

ANSWER:

Plaintiff's allegations constitute a prayer for relief requiring neither an admission nor a denial by Accurate. To the extent an answer is required, Accurate denies that Plaintiff is entitled to any relief whatsoever.

AFFIRMATIVE AND OTHER DEFENSES

FIRST DEFENSE

Plaintiff is not entitled to punitive damages because Accurate engaged in good faith efforts to comply with the FCRA and the CCRAA, Accurate's reading of its obligations under the FCRA and the CCRAA is and was objectively reasonable, and any purported violations were not willful.

SECOND DEFENSE

To the extent Plaintiff has failed to mitigate his alleged damages, any recovery should be reduced accordingly.

Respectfully submitted,

By: *s/ Jasmine J. Stanzick*
Jasmine J. Stanzick

Attorneys for Defendant
ACCURATE BACKGROUND, LLC

Date: December 22, 2025

CERTIFICATE OF SERVICE

I certify that, on December 22, 2025, I presented the foregoing document with the Clerk of the Court using the CM/ECF system, which will send notification of such filing to all counsel and/or parties of record.

By: *s/ Jasmine J. Stanzick*
Jasmine J. Stanzick